

Equal Employment Opportunity Procedures

Federal Retirement Thrift Investment Board

Effective Date: August 31, 2026

Equal Employment Opportunity Procedures

TABLE OF CONTENTS

1. Overview.....	3
2. Roles and Responsibilities	3
3. Applicable Policies	6
4. Procedures.....	6
5. Authorities and References	15
6. Revision History	16
7. Approval	16
8. Appendices.....	17
Appendix A: Sample Documents.....	17

1. Overview

The Federal Employees' Retirement System Act of 1986 (FERSA) authorized the Federal Retirement Thrift Investment Board (FRTIB), an independent agency of the U.S. Executive Branch, to administer the Thrift Savings Plan (TSP). The TSP is a defined contribution plan for U.S. Federal civilian employees and members of the uniformed services. FRTIB and TSP are collectively referred to as the Agency. The mission of FRTIB is to administer the TSP solely in the interest of its participants and beneficiaries.

The Office of Resource Management (ORM) is the FRTIB office that supports and manages human resources and administrative activities for the Agency in accordance with Office of Personnel Management (OPM) regulations and other applicable Federal regulations. ORM serves as a strategic partner to FRTIB leadership and drives the design of innovative, effective administrative services and human resource programs to support FRTIB employees and its overall mission. The Equal Employment Opportunity (EEO) function resides within ORM, however, the EEO Program Manager has direct access to the Executive Director to report matters concerning EEO.

This document sets forth FRTIB's procedures related to implementation of its EEO program. The objective of these procedures is to promote and achieve equal opportunity in employment and personnel practices within FRTIB. These procedures govern FRTIB's EEO program and compliance activities. The FRTIB Office in charge of administering and implementing these procedures is ORM.

2. Roles and Responsibilities

Aggrieved Person (AP) – is any individual that believes they have been discriminated against based on their membership in a protected class or participation in a protected activity.

*Directors, Managers, and Supervisors*¹ – are the FRTIB individuals that are responsible for:

- Actively participating in the Agency's EEO program and ensuring performance plans include any EEO policy requirements;
- Completing required Agency EEO training;
- Cooperating with the EEO Program Manager and other EEO officials in processing EEO complaints;
- Cooperating with the Office of General Counsel and other parties representing the Agency in litigation involving EEO matters;
- Refraining from any reprisal against individuals who file or participate in the EEO complaint process, oppose perceived discrimination, or file a reasonable accommodation;
- Ensuring that all Human Resources (HR) procedures and practices within their offices are based on merit and free from discrimination;
- Managing the work environment by improving communication and the acceptance of individual differences;
- Notifying the EEO Program Manager of potential EEO complaints and directing AP's to either the Agency EEO Program Manager or FRTIB EEO Counselor (Contractor) for assistance;
- Participating in Alternative Dispute Resolution (ADR) after the Agency has offered ADR and the AP has elected to participate in ADR; and
- Cooperating with the Agency representatives who develop and submit reports with respect to the Agency's EEO program (e.g., No FEAR Act Report to Congress and Management Directive 715).

¹ These roles are not included in the flows, but are provided here for informational purposes.

Executive Director (ED) - is the stakeholder responsible for:

- Providing leadership to establish and maintain a Model EEO Program, communicating this commitment to all employees, and ensuring EEO is fully integrated into the Agency's Human Capital policies, practices, and strategic mission;
- Entering into a settlement agreement on behalf of FRTIB. The ED is the sole authority and designated fiduciary who may approve settlement agreements;
- Issuing a signed EEO and Anti-Harassment policy statement to all employees annually, which is prominently posted in common-area bulletin boards, and on the Agency's internal employee and on www.frtib.gov/eoo;
- Designating a principal EEO Official (i.e., EEO Program Manager) and providing sufficient staffing and resources to operate the EEO program in an effective manner;
- Ensuring all Agency employees cooperate with counselors, investigators, and applicable officials in processing and resolving EEO complaints;
- Certifying, personally or through a designee, to the Equal Employment Opportunity Commission (EEOC) that the Agency is in compliance with EEO laws, regulations, and policy guidance, using EEOC Form 715-01 Part F; and
- Ensuring that managers, supervisors, employees, or offices demonstrating superior accomplishment in equal employment opportunity are recognized.

EEO Counselor (Contractor) – is the party responsible for conducting counseling and advising AP's during the pre-complaint process. The Counselor also serves as an independent, objective fact-finder (a neutral) and is not an advocate for employees, applicants, or FRTIB. The Counselor gathers facts to inform procedural determinations, begins developing the case record, and makes every effort to resolve the dispute at the earliest possible stage.

EEO Program Manager – is the individual that serves as the Agency's principal EEO Official, as designed by the ED. The Program Manager oversees the EEO program, in accordance with 29 CFR §1614, EEOC Management Directive 110 (MD-110), and applicable EEO directives. The Program Manager ensures EEO program information is distributed to all employees using all available media. The Program Manager conducts annual self-assessments of program effectiveness and serves as

Agency liaison to the Vendor. The Program Manager also ensures the ED's EOE policies are issued to each new hire and to all employees annually.

FRTIB Employee – is responsible for supporting the EEO program where appropriate, and treating individuals respectfully without discrimination, harassment, or retaliation. They shall cooperate with supervisors and managers carrying out EEO responsibilities and stay informed about EEO policies and procedures relevant to their duties. Employees shall report observed inappropriate conduct to their supervisor, second-level supervisor, an HR Officer, the EEO Program Manager, or an EEO Counselor. Employees are also required to complete mandatory bi-annual No FEAR training and any additional EEO training as scheduled by the Program Manager.

Office of General Counsel (OGC) – is the office responsible for representing the Agency in all matters involving allegations of discrimination, harassment, and retaliation by FRTIB. OGC also is responsible for preparing the terms and conditions of all settlement agreements for the ED's approval.

Office of External Affairs (OEA) – is the office responsible for approving the uploading of quarterly data for the EEO 462 report to the Agency external website.

ORM Director – is responsible for reviewing the Report to Congress and reviewing, resolving findings, and approving the annual MD-715 report to the EEOC.

3. Applicable Policies

- EEO Policy

4. Procedures

FRTIB utilizes a Contractor to provide EEO complaint processing services. An employee, former employee, or applicant for employment who believes they were subjected to discrimination or harassment based on race, color, religion, sex (includes pregnancy, equal pay, sexual orientation, or transgender status), national origin, age, disability, genetic information, reprisal (includes prior EEO activity, requesting reasonable accommodation, and opposing perceived EEO violations), marital status, political affiliation, and parental status may file a complaint.

4.1 Informal/Pre-Complaint (IPC)

- IPC-1. The Aggrieved Person (AP) initiates the EEO process when they believe to have been aggrieved. The AP initiates contact with the EEO Program Manager or an EEO Counselor via phone, email, or in person. Program Manager and Counselor contact information (name, phone number, and email address) is posted on several Agency bulletin boards and on the Agency Resources web page.²
- IPC-2. The Counselor, upon contact with the AP, conducts fact-finding activities to include determining the claim(s) and basis(es) raised by AP, timeliness of the initial contact, and obtaining relevant information relating to the issue(s) in accordance with EEOC Management Directives and Federal law. The Counselor ensures all applicable information is recorded on an intake form.
- IPC-3. Upon receiving the initial complaint from AP, the Counselor notifies the Program Manager, or vice versa. The Program Manager then creates a Work Order request, identifying the Contract Line Item Number (CLIN) for the appropriate EEO service requested.
- IPC-4. The Program Manager submits a Work Order to the Counselor to initiate complaint processing. In addition, the Program Manager initiates a file for the complaint. The Program Manager updates the complaint file as actions are taken throughout the life of the complaint.
- IPC-5. The Counselor conducts counseling and limited inquiries which initiate the counseling process. During the initial counseling session, the Counselor advises AP, in writing, of his or her rights and responsibilities and the opportunity to pursue resolution through either traditional counseling or participating in ADR (mediation). Counseling shall be completed within 30 calendar days of the individual's initial contact, unless AP agrees to an extension of up to 60 additional calendar days. If ADR is selected, the parties have 90 calendar days to attempt resolution.

² FRTIB's Internal EEO Website: <http://tibwebs.frtib/employee-info/EEOC/index.html>

Confidentiality and anonymity remains a forefront concern throughout these proceedings. Prior to contacting the Responsible Management Official (RMO), the Counselor and/or Program Manager provides Office of General Counsel (OGC) with the name of the RMO and the basis of the complaint. If AP has waived confidentiality, the Counselor may also share a copy of documents submitted as part of AP's initial filing (e.g., intake form and supporting documents). The Counselor contacts the RMO as part of the limited inquiry process.

- IPC-6. The Program Manager, upon being informed that the matter is resolved informally, documents the resolution. If, during the course of the limited inquiry, the Agency and AP agree to an informal resolution of the dispute, the terms of the resolution shall be documented in writing, clearly identify the claims resolved, and be signed by both the Executive Director and AP to ensure understanding of the terms of the resolution.³ OGC must coordinate with the Counselor, Program Manager, AP, and Executive Director to develop the terms of the informal resolution in a settlement transmitted to the parties. The document shall clearly state the terms of the informal resolution and shall notify AP of the procedures available under 29 C.F.R. § 1614.504, in the event that the Agency fails to comply with the terms of the resolution. OGC will memorialize the terms of the informal resolution in a written settlement agreement that binds both the AP and the Agency. The Counselor transmits a signed and dated copy of the settlement agreement to the Program Manager. The Program Manager retains the copy for four years, or until they are certain that the agreement has been fully implemented.

³ See 29 C.F.R. § 1614.603

- IPC-7. The Counselor conducts a Final Interview with AP and issues the Notice of Right to File (NRTF) a Formal Complaint. The Final Interview with AP always occurs, but the NRTF is only issued when an informal resolution is unable to be reached. The Final Interview and NRTF notice shall be conducted within 30 calendar days of AP's initial contact or up to 90 calendar days, if ADR is chosen, or an extension is executed. The counseling period may not exceed 90 calendar days.
- IPC-8. The Counselor provides AP with the names of person(s) authorized to receive formal complaints. The Counselor also informs AP that AP's formal complaint shall be delivered to one of the authorized person(s).
- IPC-9. AP receives a NRTF and other pertinent information. If AP decides to file a formal complaint, proceed to Formal Complaint Procedures (FCP-1).
- IPC-10. When advised that AP has filed a formal complaint, the Counselor submits a Counselor's Report pursuant to 29 C.F.R. § 1614.105(c), to the Program Manager. The report contains relevant information summary of all relevant information collected during the counseling stage – including, but not limited to, AP, jurisdiction, claims, basis(es), requested remedy(ies), and informal resolution information. For informal resolution, the report shall state if traditional counseling or ADR (mediation) was attempted, but the report shall not provide information about specific resolution offers and shall offer no opinion as to whether discrimination occurred. The Counselor submits a copy of the Counselor's Report to the Program Manager and AP. This transmission shall occur within fifteen calendar days after notification by the Program Manager that a formal complaint has been filed, or upon the Counselor's receipt of the formal complaint.
- IPC-11. The Program Manager gets the Counselor's Report and updates the complaint file.

4.2 Formal Complaint (FCP)

- FCP-1. AP files a written formal complaint on a form provided by the Counselor. The formal complaint shall be submitted to the Counselor or Program Manager within 15 calendar days of AP's receipt of the NRTF notice. Upon receiving notice of the formal complaint filing, the Program Manager will inform OGC. The Program Manager will also provide a copy of the complaint and supporting documents to OGC, once they are available. Written complaints filed by email, hand delivery during business hours, U.S. Mail, or a commercial carrier must meet regulatory time frames. The filing date is the date of the postmark, transmission, delivery, or in-person filing and must fall within the required 15 calendar day deadline.
- FCP-2. The Program Manager receives AP's formal complaint and submits an Acknowledgement letter of receipt of the formal complaint to AP. The Acknowledgement letter shall inform AP of the filed-on date. The Program Manager also advises AP in the Acknowledgement letter of the EEOC office and its address where a request for a hearing shall be sent. The letter shall also advise AP that: (1) AP has the right to appeal the final action or dismissal of a complaint; and (2) the Agency is required to conduct an impartial and appropriate investigation of the complaint within 180 days of the filing of the complaint, unless the parties agree in writing to extend the time period. Further, when a complaint has been amended, the Agency shall complete its investigation within the earlier of 180 days after the last amendment to the complaint or 360 days after the filing of the original complaint. Additionally, AP may request a hearing from an administrative judge on the consolidated complaints any time after 180 days from the date of the first filed complaint.
- FCP-3. AP receives written confirmation of receipt of the formal complaint from the Program Manager.
- FCP-4. The Program Manager updates the complaint file, generates a new Work Order, and sends a copy of the formal complaint to OGC.
- FCP-5. OGC receives a copy of the formal complaint.

- FCP-6. The Counselor evaluates the complaint file in collaboration with the Program Manager.
- FCP-7. The Program Manager notifies AP of acceptance or rejection of the complaint. Listed below are components that are included in letters sent to AP:
- The Agency—via the Program Manager—sends AP a second letter detailing the claim(s) asserted and to be investigated. If the second letter’s statement of the claim(s) asserted and claim(s) for investigation differs, the letter further shall explain the reasons for the difference, including whether the Agency is dismissing a portion of the complaint.
 - The Agency shall advise AP that they may submit a statement to the Agency concerning the Agency’s articulation of the claim, which shall become a part of the complaint file.
 - The Agency shall notify AP of a partial dismissal by letter and further inform AP that there is no immediate right to appeal the partial dismissal.
 - The Agency shall advise AP that a partial dismissal will be reviewed by an EEOC Administrative Judge if a hearing is requested, or by the EEOC if AP appeals a final agency action or decision.
 - Unless AP states otherwise, copies of the acknowledgment letter and all subsequent actions on the complaint shall be mailed or delivered to the AP’s representative with a copy to AP.
- FCP-8. AP receives decision details via a written letter.
- FCP-9. The Investigator (Contractor) conducts an investigation on the accepted claim(s)⁴, documents findings, and provides the Report of Investigation (ROI) to AP and Program Manager.
- FCP-10. AP receives and reviews the investigation conclusion report. Depending on the outcome of the investigation, the employee may elect a hearing before an EEOC administrative judge, request a final decision from FRTIB, or cease the formal complaint process entirely.⁵

4.3 Parental Status, Marital Status, and Political Affiliation (PS, MS, PA)

AP's and agency leadership will follow the EEOC hearing and appeals process (Refer to 29 C.F.R. § 1614).

FCPPS-1. Claims based solely on parental status are not covered by federal EEO laws and are prohibited only by Executive Order 13152. As a result, AP may not request a hearing before an EEOC Administrative Judge, and the Agency's Final Agency Decision is the only available formal resolution, with no appeal rights.

FCPMS-1. Claims based solely on marital status are not covered by federal EEO laws, and are instead governed by 5 USC §2302(b)(1). As a result, no EEOC Administrative Judge hearing is available, nor are appeal rights. Accordingly, all such formal claims are referred to the Office of Special Counsel for investigation, who has authority to investigate under the Civil Service Reform Act of 1978 (CRSA), 5 USC §2302(b)(1)(E).

FCPPA-1. Claims based solely on political affiliation are not covered by federal EEO laws, and are instead governed by 5 USC §2302(b)(1). As a result, no EEOC Administrative Judge hearing is available, nor are appeal rights. Accordingly, all such formal claims are referred to the Office of Special Counsel for investigation, who has authority to investigate under the Civil Service Reform Act of 1978 (CRSA), 5 USC §2302(b)(1)(E).

⁴ Process is completed in accordance with EEO MD-110 (Chapter 5).

⁵ EEOC Hearing, civil action, and appeals processes please refer to 29 C.F.R § 1614.

4.4 Developing the EEO 462 Quarterly/Annual Report (RPT)

- RPT-1 The Counselor documents, tracks, and inputs data into the EEO 462 spreadsheet⁶ and submits to the Program Manager.
- RPT-2 The Program Manager receives and reviews the spreadsheet and data from the Counselor.
- RPT-3 If there are issues with the data, the Program Manager works with the Counselor to resolve any issues.
- RPT-4 OEA reviews the quarterly data for the EEO 462 report to the Agency external website. If there are issues with the data, see step RPT-3.
- RPT-5 OEA approves the quarterly data.
- RPT-6 OTS develops a template to depict the EEO Form 462 data on the Agency external website and uploads the data to the website⁷ once it is approved.
- RPT-7 The Program Manager uploads data to the Federal Sector (FedSEP) EEO portal annually.

⁶ Data collection template for documenting EEO reported data.

⁷ www.eeoc.gov

4.5 Report to Congress (RTC)

- RTC-1. The Program Manager compiles relevant EEO data (i.e., statistics) for the year and drafts a report.
- RTC-2. The Program Manager sends report to ORM Director for review.
- RTC-3. The ORM Director reviews the report to confirm completeness based on EEOC guidance, provides comments in writing, and sends report for OGC review.
- RTC-4. OGC reviews the report based on compliance with EEOC guidance, provides comments in writing, as necessary, and sends report to OEA for review.
- RTC-5. OEA reviews the report to Congress based on policy guidelines and provides feedback.
- RTC-6. The Program Manager incorporates feedback and changes from OGC, the ORM Director, OEA, and provides the report to OGC for final review.
- RTC-7. OGC conducts a final review on the report to confirm accuracy, provides approval in writing, and submits the report to the Executive Director.
- RTC-8. The Executive Director or Chief Operating Officer (COO) reviews the report and determines if any revisions are required. If no revisions are required, the report is approved in writing.
- RTC-9. If revisions are required, the EEO Program Manager incorporates applicable changes based on feedback and submits the report to Congress via OEA.

4.6 MD-715 Reporting (MDR)

- MDR-1. The EEO Program Manager completes the checklist from Management Directive (MD) -715 and sends to the ORM Director for review.
- MDR-2. The ORM Director reviews the checklist for completeness against MD-715. If there are no issues, the ORM Director approves the findings in writing.
- MDR-3. If issues are identified during the review, the ORM Director works with the Program Manager to resolve the issue(s).

- MDR-4. The Program Manager collects relevant information (e.g., organization chart from the Human Resource Division, policy, procedures).
- MDR-5. The Program Manager uploads the checklist to Federal Sector EEO Portal (FedSEP).
- MDR-6. The Program Manager prints the report and provides a copy to the ORM Director and Executive Director and COO.
- MDR-7. The ORM Director receives the report and files in accordance with the applicable records management schedule.
- MDR-8. The Executive Director and COO receives report for awareness purposes.

5. Authorities and References

- Age Discrimination in Employment Act of 1967 (29 U.S.C. §621-634)
- Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.)
- The Civil Rights Act of 1964 (42 U.S.C. §2000e et seq.)
- Equal Pay Act of 1963 (29 U.S.C. §206(d))
- Notification and Federal Employee Antidiscrimination and Retaliation (No Fear) Act of 2002 (5 U.S.C. §2301)
- Rehabilitation Act of 1973 (29 U.S.C. §791, 793, 794(a))
- Civil Rights Act of 1991 (42 U.S.C. §1981a)
- Genetic Information Nondiscrimination Act of 2008 (42 U.S.C. §2000ff et seq.)
- EEOC Management Directive 715 (MD-715)
- EEOC Management Directive 110 (MD-110)
- 5 CFR §213.3102
- 5 CFR §213.3202(11)
- 5 CFR §315.709
- 5 CFR §720, Subparts B and C
- 29 CFR §1603
- 29 CFR §1604
- 29 CFR §1606
- 29 CFR §1607
- 29 CFR §1614
- 29 CFR §1690
- EO 11478, Equal Employment Opportunity in the Federal Government
- EO 12067, Agency and EEOC Authority and Responsibility
- EO 13087, Sexual Orientation

- EO 13145, To Prohibit Discrimination in Federal Employment Based on Genetic Information
- FRTIB EEO Website: <http://tibwebs.frtib/employee-info/EEOC/index.html>
- National Defense Authorization Act (NDAA) of 2021, Section 1136

6. Revision History

Date	Version	FRTIB Author	Comments <i>(briefly summarize change)</i>
05/01/2016	0	Randy Berry	Initial Version
01/31/25	1	Kelly Powell	Revised to comply with Executive Order 14168.
08/26/26	2	Dave Anthony	Removed DEI/Barrier Analysis language in accordance with 2025 & 2026 Executive Orders, Memorandum, and EEOC guidance. Added marital status, political affiliation, and parental status investigation sections per Executive Order 13152. Simplified some language throughout.

7. Approval

Name: _____ Date: _____
Gisile Goethe

Title: Director, ORM

8. Appendices

Appendix A: Sample Documents

- MD-715 Reporting Instructions (www.egov.eeoc.gov)

Appendix B: Reference Material

- EEOC Management Directive 715 (MD-715)
- EEOC Management Directive 110 (MD-110)
- Government Accountability Office Report to Congressional Committees: Equal Opportunity Employment (August 2009)

Appendix C: Flowcharts

The Flowcharts in Appendix C are provided only as a reference and have no authoritative value. Any ambiguity or confusion between the Flowcharts and the Equal Employment Opportunity Policy and Procedures should be resolved in favor of the Policy and Procedures.

- Informal/Pre-Complaint (IPC)
- Formal Complaint (FCT)
- Developing the EEO 462 Quarterly/Annual Report (RPT)
- Report to Congress (RTC)
- MD-715 Reporting (MDR)